

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

ADEGOKE ATUNBI,

Plaintiff,

-against-

CITY OF NEW YORK; Sergeant ADNAN
RADONCIC; Deputy Inspector JOHN
MASTRONARDI; and JOHN and JANE
DOE 1-10,

Defendants.

Index No.:

Date Purchased:

Plaintiff designates Kings County as
place of venue

SUMMONS

The basis of the venue is:

Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: April 1, 2021

Briarcliff Manor, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK

By: _____


Gabriel P. Harvis, Esq.,

Attorneys for the Plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(212) 532-1116

Defendants:

CITY OF NEW YORK

100 Church Street

New York, NY 10007

Sergeant ADNAN RADONCIC

75th Precinct

1000 Sutter Avenue

Brooklyn, NY 11208

Deputy Inspector JOHN MASTRONARDI

c/o Corporation Counsel

100 Church Street

New York, New York 10007

Failure to respond will result in a judgment against you by default and interest from April 28, 2020.

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

ADEGOKE ATUNBI,

Plaintiff,

-against-

CITY OF NEW YORK; Sergeant
ADNAN RADONCIC; Deputy Inspector
JOHN MASTRONARDI; and JOHN
and JANE DOE 1-10,

Defendants.

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VERIFIED COMPLAINT

Plaintiff ADEGOKE ATUNBI, by his attorneys, ELEFTERAKIS,
ELEFTERAKIS & PANEK, complaining of the defendants, respectfully alleges:

JURISDICTION

1. This action falls within one or more of the exemptions set forth in CPLR § 1602.
2. The action arises under the First, Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.
3. Jurisdiction is conferred by 42 U.S.C. § 1983 and the laws of the State of New York.
4. On or about June 11, 2020, and within ninety (90) days after the claim arose, plaintiff duly served, presented, and filed a Notice of Claim, in writing, upon

defendants in accordance with General Municipal Law 50-e, and which set forth the following:

- a. the nature of the claim;
 - b. the time when, place where, and manner in which the claim arose; and
 - c. the items of damages and injuries sustained.
5. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claim.
6. The City of New York examined plaintiff pursuant to G.M.L. § 50-h on or about August 31, 2020 in connection with both Notices of Claim.
7. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

PARTIES

8. Plaintiff Adegoke Atunbi is a resident of the State of New York.
9. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD

personnel. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

10. The individual defendants were, at all relevant times, employees of the NYPD. In their interactions with plaintiff these defendants were acting in the capacity of agent, servant and employee of defendant City of New York and acted within the scope of their employment and under color of state law. These defendants, *inter alia*, used excessive force against plaintiff and fabricated criminal charges against him, forwarded them to prosecutors and deprived plaintiff of his liberty. These defendants are sued in their individual capacities.

11. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the illegal conduct set forth herein that deprived plaintiff of his rights. John and Jane Doe 1-10 are sued in their individual capacities.

12. At all times here mentioned, the individual defendants were acting under color of state law.

STATEMENT OF FACTS

13. On or about April 28, 2020, at approximately 6:00 p.m., Mr. Atunbi was lawfully present in the vicinity of 1350 Sutter Avenue in Brooklyn, New York.

14. From a safe and reasonable distance, Mr. Atunbi was standing on the sidewalk attempting to document the enforcement activity of a group of NYPD officers under the supervision of defendant Mastronardi.

15. The individual defendants, who were largely unmasked, were aggressively confronting citizens in plaintiff's vicinity.

16. Without warning or justification, several of the individual defendants, including Radoncic, violently grabbed plaintiff and threw him to the ground, punching and kicking plaintiff.

17. Having sustained serious injuries, plaintiff was then handcuffed tightly and defendants refused plaintiff's repeated requests to loosen the cuffs.

18. Defendants then issued plaintiff summonses for allegedly committing disorderly conduct and violating social distancing regulations.

19. The officers lacked arguable probable cause to charge plaintiff with any crime.

20. As a result of defendants' misconduct, Mr. Atunbi suffered emotional distress, loss of liberty, mental anguish, fear, pain, bodily injury, anxiety, property damage, lost property, lost income, embarrassment and humiliation.

FIRST CLAIM

False Arrest

21. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

22. Defendants violated the First, Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

23. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM

State Law False Imprisonment and False Arrest

24. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

25. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning and falsely arresting plaintiff.

26. Plaintiff was conscious of his confinement.

27. Plaintiff did not consent to his confinement.

28. Plaintiff's confinement was not otherwise privileged.

29. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

30. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

THIRD CLAIM
Unreasonable Force

31. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

32. The defendants violated the Fourth and Fourteenth Amendments because they used unreasonable force on plaintiff.

33. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

FOURTH CLAIM
State Law Assault and Battery

34. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

35. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him.

36. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

37. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM

Negligence; Negligent Hiring/Training/Retention

38. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

39. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

40. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

41. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

42. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

43. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SIXTH CLAIM
First Amendment Retaliation

44. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

45. By their conduct, as described herein, and acting under color of state law to deprive the plaintiff of his right to record under the First and Fourteenth Amendments, the individual defendants are liable for violation of 42 U.S.C. § 1983 which prohibits the deprivation under color of state law of rights secured under the United States Constitution. The individual defendants have violated plaintiff's First Amendment rights by unlawfully denying his right to videotape the police by subjecting him to false arrest and excessive force to deter the exercise of his First Amendment rights. Defendants' actions were taken in retaliation for plaintiff's exercising his First Amendment rights.

46. As a consequence of the individual defendants' actions, plaintiff has suffered violations of his First Amendment rights. Plaintiff has fear and apprehension that he will, again, be subject to similar unlawful acts by defendants for the purpose of limiting and preventing his First Amendment-protected activities.

47. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM

Intentional Infliction of Emotional Distress

48. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

49. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each committed conduct so extreme and outrageous as to constitute the intentional infliction of emotional distress upon plaintiff.

50. The intentional infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

51. Defendants, their officers, agents, servants, and employees were responsible for the intentional infliction of emotional distress upon plaintiff. Defendant

City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

52. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

EIGHTH CLAIM

Negligent Infliction of Emotional Distress

53. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

54. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent in committing conduct that inflicted emotional distress upon plaintiff.

55. The negligent infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

56. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

57. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM
Failure to Intervene

58. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

59. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

60. Accordingly, the defendants who failed to intervene violated the First, Fourth and Fourteenth Amendments.

61. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CLAIM
Malicious Abuse of Process

62. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

63. The individual defendants issued legal process to place plaintiff under arrest.

64. The individual defendants arrested plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to cover up their assault of him.

65. The individual defendants acted with intent to do harm to plaintiff without excuse or justification.

66. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CLAIM

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67. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

68. The City of New York is responsible for the injuries sustained by plaintiff pursuant to 42 U.S.C. § 1983 because the injuries were proximately caused by policies of the City of New York.

69. Specifically, the City of New York and its NYPD adopted a policy of aggressive over-policing in response to the protests that followed the death of George Floyd.

70. The City and its NYPD failed to train its officers to constitutionally police protest marches and permit the free exercise of citizens' rights under the First

Amendment, even though the municipality knew to a moral certainty that officers would encounter citizens, like plaintiff, who were engaged in First Amendment-protected speech activities.

71. These failures have been the subject of numerous reports, including by the New York State Attorney General and NYPD Inspector General, as well as individual damages actions and class action litigation.

72. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM
Punitive Damages & Attorney's Fees

73. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

74. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

75. Accordingly, plaintiff is entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff, Adegoke Atunbi, demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of

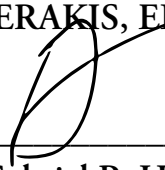
all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: April 1, 2021

Briarcliff Manor, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: 

Gabriel P. Harvis, Esq.

80 Pine Street, 38th Floor

New York, New York 10005

(P)(212) 532-1116

(F)(212) 532-1176

Attorneys for plaintiff

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF WESTCHESTER)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the plaintiff herein, affirms:

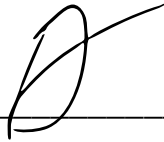
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: Briarcliff Manor, New York
April 1, 2021



Gabriel P. Harvis, Esq.

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Defendants.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005
212.532.1116

Summons and Verified Complaint

STATE OF NEW YORK, COUNTY OF WESTCHESTER, SS:

GABRIEL P. HARVIS, ESQ., the undersigned, an attorney admitted to practice in the
Courts of New York State, affirms the following:

I further certify that my signature below acts as a “certification” for the documents
attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22
NYCRR).

Dated: New York, New York
April 1, 2021



Gabriel P. Harvis, Esq.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005